

**State of Minnesota****District Court**

|            |                                         |
|------------|-----------------------------------------|
| County of: | Judicial District: _____                |
|            | Court File Number: _____                |
|            | Case Type:                      Housing |

\_\_\_\_\_  
Plaintiff (Landlord) (first, middle, last)**Eviction Action Answer**

(Minn. Stat. §504B.335)

\_\_\_\_\_  
Plaintiff's Address

VS.

\_\_\_\_\_  
Defendant(s) (Tenants) (first, middle, last)\_\_\_\_\_  
Tenant's Date of Birth:\_\_\_\_\_  
Defendant's Address

My name is \_\_\_\_\_. I understand that I must tell the truth:

1. I am the Defendant in this case.

2. **Receipt of Court Papers** (check one):

- a. ☐ At least seven (7) days before the date of the court hearing someone other than the Plaintiff hand-delivered to me the *Summons and Eviction Complaint*.
- b. ☐ At least seven (7) days before the date of the court hearing someone other than the Plaintiff hand-delivered the *Summons and Eviction Complaint* to \_\_\_\_\_ an adult who lives with me.
- c. ☐ The *Summons and Eviction Complaint* were not delivered to me or to a person of suitable age and discretion living with me or mailed to me at least seven (7) days before the court hearing.
- d. ☐ The *Summons and Eviction Complaint* were given to the following person who does not live with me: \_\_\_\_\_
- e. ☐ The *Summons and Eviction Complaint* were given to a child whose name is \_\_\_\_\_ and who is \_\_\_\_\_ years of age and who is not of suitable age and discretion to receive service.
- f. ☐ I received the *Summons and Eviction Complaint* in the mail at my residence at least seven (7) days before the court hearing.
- g. ☐ The *Summons and Eviction Complaint* were posted in a conspicuous place on the

property at least seven (7) days before the hearing.

**3. Military Service** (check one):

☐ I am ☐ I am not now an active duty member of the armed forces of the United States.

**4. Name and Address of Building Manager and Owner** (check one):

☐ Plaintiff (Landlord) gave me the name and street address of the property owner AND the person authorized to manage the property, OR the name and street address of the agent authorized to collect rent, accept service of process, and receive and give receipt for notices and demands, in the rental agreement or otherwise in writing, or by posting the information in a conspicuous place on the property.

☐ I knew the name and street address of the property owner or property manager or person authorized to accept rent or service of process at least 30 days before the date of the hearing.

☐ I did not know the name and street address of the property owner or property manager or person authorized to accept rent or service of process at least 30 days before the date of the hearing.

**For Questions 5-10, Check off only those that are true:**

5. ☐ Plaintiff says that I owe rent in the total amount of \$ \_\_\_\_\_. I believe Plaintiff is wrong because:

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6. ☐ Plaintiff says that I did not move out after receiving proper notice. I believe Plaintiff is wrong because:

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7. ☐ Plaintiff says the rental agreement has expired. I believe Plaintiff is wrong because the rental agreement does not expire until the following date: \_\_\_\_\_.  
I have attached a copy of the rental agreement.

8. ☐ Plaintiff says that I have broken the lease. I believe Plaintiff is wrong because:

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9. ☐ My apartment has the following repair problems, which I have told my landlord about, but which my landlord has not fixed.

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10. ☐ I believe that my landlord should not be able to evict me because:

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11. ☐ If I have to move, allow me seven (7) days to move because: (Tell the court why it would be a substantial hardship for you to move immediately)

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### **Acknowledgment**

By presenting this form to the court, I certify that to the best of my knowledge, information, and belief, the following statements are true. I understand that if a statement is not true, the court can order a penalty against me (such as to pay money to the other party, pay court costs, and/or other penalties).

1. The information I included in this form is based on facts and supported by existing law.
2. I am not presenting this form for any improper purpose. I am not using this form to:
  - a. Harass anyone;
  - b. Cause unnecessary delay in the case; or
  - c. Needlessly increase the cost of litigation.

3. No judicial officer has said I am a frivolous litigant.
4. There is no court order saying I cannot serve or file this form.
5. This form does not contain any "restricted identifiers" or confidential information as defined in Rule 11 of the General Rules of Practice ([https://www.revisor.mn.gov/court\\_rules/gp/id/11/](https://www.revisor.mn.gov/court_rules/gp/id/11/)) or the Rules of Public Access to Records of the Judicial Branch ([https://www.revisor.mn.gov/court\\_rules/rule/ra-toh/](https://www.revisor.mn.gov/court_rules/rule/ra-toh/)).
6. If I need to file "restricted identifiers," confidential information, or a confidential document, I will use Form 11.1 and/or Form 11.2, as required by Rule 11.

Dated: \_\_\_\_\_

\_\_\_\_\_  
Signature of Defendant(s)

(Attach additional sheets if multiple defendants)

Name: \_\_\_\_\_

Address: \_\_\_\_\_

City/State/Zip: \_\_\_\_\_

Telephone: \_\_\_\_\_

E-mail address: \_\_\_\_\_